THE 1987 PHILIPPINE CONSTITUTION

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CONCEPTS OF STATE AND GOVERNMENT

❖ *MEANING OF A STATE*

A community of persons, more or less numerous, permanently occupying a definite portion of territory, independent of external control, and possessing a government to which a great body of inhabitants render habitual obedience.

The Philippines is a state.

ELEMENTS OF STATE

1. People
2. Territory
3. Government
4. Sovereignty

People – inhabitants of the State, the number of which is capable for self-sufficiency and self-defense; of both sexes for perpetuity.

Different meanings of the word *people*:

a. People as ***inhabitants*** *(Sec.1, Art. XIII; Secs.15 -16, Art. II; Sec. 2, Art. III);*

b. People as ***citizens*** *(Preamble; Secs. 1 and 4, Art. II; Sec.7, Art. III);*

c.People as ***electors*** *(Sec.4, Art. VII; Sec.2, Art. XVI; Sec. 25, Art. XVIII).*

- There is **<u>no requirement as to the number of people</u>** that should compose a state. Ideally, it should be neither too small nor too large: *small enough to be well-governed and large enough to be self-sufficing.*

- ***Vatican City*** - smallest state in point of population; estimated population of 900 citizens, mainly clerics and some Swiss guards.

- ***China*** is the largest state in point of population placed at about 1.43 billion.

- ***Philippines*** has an estimated population (2024 Est.) at 119 million.

TERRITORY

- The fixed area or surface of the earth where the inhabitants of a State live and where they maintain a government of their own. *(see Article 1)*

Components:

- ***Terrestrial domain*** - refers to the area of the land
- ***Fluvial or Maritime* domain** – refers to external and internal waters
- ***Aerial domain*** - *refers to the air space above the land and the waters*

Sovereignty

Defined: The supreme power of the State to **command and enforce obedience to its will** from people within its jurisdiction and corollary to its, to have freedom from foreign control.

i)Internal or the supreme power over everything within its territory;

i) External, also known as independence, which is freedom from external control.

Characteristics:

a. permanent
b. exclusive
c. comprehensive
d. absolute
e. indivisible
f. inalienable
g. imprescriptible

State distinguished from nation

- **State** is a ***political concept*** (relates to matters of government, specifically the conduct of governmental affairs, while **nation** is an ***ethnic concept***. A nation is a group of people bound together by certain characteristics such as common social origin, language, customs, and tradition and who believe that they are one and distinct from others. ‘The term is more synonymous with “people.

State distinguished from Government

- **GOVERNMENT** refers to the agency through which the will of the state is formulated, expressed and carried out.
- The word is sometimes used to refer to person or aggregate of persons in whose hands are placed for the time being the functions of political control. This “body of men” is usually spoken of as “administration”.

Government of the Republic of the Philippines – is the corporate governmental entity through which the functions of government are exercised throughout the Philippines, including the various arms which political authority is made effective, whether pertaining to the autonomous regions, the provincial, city or barangay subdivisions or other forms of local government. *[Sec. 2(1), E.O. 292 or the Administrative Code of 1987]*

PURPOSE and NECESSITY of Government

The **four main roles of government** are:

1. ensure that citizens follow the law;
2. make sure that citizens do not encroach on each other's rights;
3. create the laws and regulations of the state;
4. maintain positive and mutually beneficial relations with the governments of other states.

KINDS AND FORMS OF GOVERNMENT:

1. *Monarchy*

2. *Oligarchy (Aristocracy)*

3. *Democracy*
    a. *Pure Democracy*
    b. *Republican*

UNITARY VS FEDERAL GOVERNMENT

On the basis of relationship between the centre and the units, the governments may be classified as **unitary** and **federal**.

In a unitary government, all the powers of government are vested in the central government whereas in a federal government, the powers of government are divided between the centre and the units.

Tests of Democratic Government:

1. ***Existence of a Constitution***

2. ***Holding of Regular election***

CONCEPT OF CONSTITUTION

Q: *WHAT IS A CONSTITUTION?*

CONSTITUTION

- That **body of rules and maxims** in accordance with which the powers of **sovereignty** are **habitually exercised**.

- *[Cooley, Constitutional Limitations, p. 4].*

- It is the ***basic*** and ***paramount law*** to which all other laws must conform and to which all persons, including the highest officials, must defer.

- Justice Isagani Cruz

The 1987 Constitution took effect on ***February 2, 1987***, the **date of the plebiscite for its ratification** and **not** on the *date its ratification was* ***proclaimed*** *(February 11, 1987)*. (*De Leon v. Esguerra*, 153 SCRA 602)

18 ARTICLES; 306 SECTIONS

Basic Principles underlying the new Constitution

The 1987 Constitution is founded upon certain fundamental principles of government which have become part and parcel of our cherished democratic heritage as a people. A knowledge of these principles is, therefore, essential to a proper understanding of our organic law.

Among these principles as contained in the new Constitution are the following:

1. Recognition of the aid of the Almighty God *(see Preamble)*

2. Sovereignty of the people *(see Art. II, Sec. 1)*

3. Renunciation of war as an instrument of national policy

4. Supremacy of civilian authority over the military

5. Separation of Church and the State

6. Recognition of the family as a basic social institution and of the vital role of the youth in nation-building

7. Guarantee of human rights *(see Art. III, Sec. 1-22)*

8. Government through suffrage *(see Art. V, Sec. 1)*

9. Separation of powers *(See Art. VI, Sec. 1)*

10. Independence of the judiciary *(see Art. VIII, Sec. 1)*

11. Guarantee of local autonomy *(see Art. X, Sec. 1)*

12. High sense of public service morality and accountability of public officers *(see Art. XI, Sec. 1)*

13. Nationalization of natural resources and certain private enterprises affected with public interest *(see Art. XII, Secs. 2, 3, 17, 18)*

14. Non-suability of the State *(see Art. XVI, Sec. 3)*

15. Rule of the majority

16. Government of laws and not of men

❖ THE CONSTITUTION IS THE SUPREME LAW OF THE LAND

- A Constitution is a legislation ***direct from the people*** acting in their ***sovereign capacity***; hence, it is ***superior than an ordinary law or statute*** which is merely a legislation from the people's representatives *subject to limitations prescribed by the Constitution*.

❖**BEING THE SUPREME LAW OF THE LAND, IT IS THE SYMBOL AND MONUMENT OF THE PEOPLE'S WILL**

- As such, it should be **submitted for ratification of the people** following the principle that "*x x x* ***sovereignty resides in the people and all government authority emanates from them.***"

❖ THE CONSTITUTION OUTLINES THE INFRASTRUCTURES OF THE GOVERNMENT

- It is through the Constitution that the **fundamental powers** of the government are **established, limited and defined**, and by which those powers are **distributed among the several departments** of the government for their **safe and useful exercise** and for the **benefit of the body politic**. (*Justice Malcolm)*

❖THE CONSTITUTION MUST BE OBEYED BY ALL

- It governs the poor and the rich, the governed and the governors, the mighty and the weak, and regardless of the color of one's skin, his religion, or his political persuasion.

- **THE CONSTITUTION MAY BE MODIFED EITHER BY AMENDMENT OR BY REVISION**

- However, any amendment to, or revision of the Constitution shall be ***valid only when ratified by the people***.

❖ THE COURTS ARE THE ULTIMATE GUARDIANS OF OUR CONSTITUTION

- The difficult questions involving the interpretation of any provision of our Constitution will be resolved by the **Supreme Court**. This is a power allocated to the Supreme Court, and its **decisions shall be binding to all citizens** of the Republic of the Philippines, including any and all officials of the Government, including the President of the Philippines.

- The constitution is primarily designed to **preserve and protect** the rights of individuals *against the arbitrary actions of those in authority*.
- Abuse of political power has been the biggest threat to liberty everywhere and throughout history. Truth to tell, *"the greater the power the more dangerous the abuse."*

One of the great intellectuals who realized the danger of political power was *Lord Acton*, who, in 1887, wrote: "***Power tends to corrupt, and absolute power corrupts absolutely.***"

One of the more effective instruments for ***limiting coercive political power*** to protect human rights is a **written constitution** that enshrines the principle of popular sovereignty, values human dignity, and establishes an independent judiciary.

- **Constitution distinguished from ***Statute***

A **constitution** is the foundational document that establishes the structure, powers, and limits of a government. It lays out the fundamental principles, rights, and responsibilities of the government and its citizens. Constitutions are typically very difficult to amend and are meant to be enduring.

In contrast, a **statute** is a law enacted by the legislative branch of government. Statutes are more specific and deal with particular issues or policies. They can be more easily amended or repealed by the legislature compared to constitutional changes. Statutes must be consistent with and fall within the scope of the constitution.

KINDS OF CONSTITUTION

Constitutions may be classified as follows:

(1) As to their origin and history;

(2) As to their form;

(3) As to the manner of amending them

(1) *As to their origin and history:*

- **Conventional or enacted** – one which is formally struck off at a definite time and place following a conscious or deliberate effort taken by a constituent body or ruler.
- **Cumulative or evolved** - one is the result of political evolution, not inaugurated at any specific time but changing by accretion rather than by any systematic method. Like the British Constitution which a product of growth or long period of development originating in customs, traditions, judicial decisions, etc.

(2) *As to their form:*

- **Written constitution** is one whose precepts are embodied in one document or set of documents.

- **Unwritten constitution** consists of rules which have not been integrated into a single, concrete form but are scattered in various sources, such as statutes of fundamental character, judicial decisions, commentaries of publicists, customs and traditions.

(3) *As to the manner of amending them:*

- **Rigid or inelastic**- One regarded as a document of special sanctity which may not be amended or altered except through a ***special process*** *distinct from and more involved than the method of changing ordinary laws*. It is supposed that by such a special procedure, the constitution is rendered difficult to change and thereby acquires a greater degree of stability.

- **Flexible or elastic**- One which possesses no higher legal authority than ordinary laws and which may be altered in the same manner as ordinary laws.

ADVANTAGES AND DISADVANTAGES OF A WRITTEN CONSTITUTION

(1) It has the **advantage of clearness and definiteness** over unwritten one. This is because it is prepared with great care and deliberation. Such a constitution cannot be easily bent or twisted by the legislature or by the courts, to meet the temporary fancies of the moment. Hence, the protection it affords and the rights it guarantees are apt to be more secure. Moreover, it is more stable and free from all dangers of temporary popular passion.

(2) Its **disadvantage lies in the difficulty of its amendment** (*see Art. XVII)*. This prevents the immediate introduction of needed changes and may thereby retard the healthy growth and progress of the state.

Qualities of a good written Constitution

1. Broad
2. Brief
3. Definite

a) **Broad.** Not just because it provides for the *organization of the entire government* and *covers all persons and things* within the territory of the State but because it must be *comprehensive enough to provide for every contingency*.

b) **Brief**. It must confine itself to *basic principles to be implemented* with legislative details more adjustable to change and easier to amend.

c) **Definite**. To *prevent ambiguity* in its provisions which could result in confusion and divisiveness among the people.

THREE (3) ESSENTIAL PARTS of a good written Constitution

1.) Constitution of Liberty
2.) Constitution of Government
3.) Constitution of Sovereignty

***a)* Constitution of Liberty.** *The series of prescriptions setting forth the fundamental civil and political rights of the citizens and imposing limitations on the powers of government as a means of securing the enjoyment of those rights, e.g., Art. III.*

***b)* Constitution of Government.** *The series of provisions outlining the organization of the government, enumerating its powers, laying down certain rules relative to its administration, and defining the electorate, e.g., Arts. VI, VII, VIII and IX.*

c) Constitution of Sovereignty. *The provisions pointing out the mode or procedure in accordance with which formal changes in the fundamental law may be brought about, e.g., Art. XVII.*

INTERPRETATION/CONSTRUCTION OF CONSTITUTION

- **First,** ***VERBA LEGIS,*** i. e., whenever possible, the words used in the Constitution must be given their ***ordinary meaning*** except where technical terms are employed.

As the Constitution is not primarily a lawyer's document, it being essential for the rule of law to obtain that it should ever be present in the people's consciousness, its language as much as possible should be understood in the sense they have a common use.

- **Second,** where there is ambiguity, ***RATIO LEGIS ET ANIMA***. The words of the Constitution should be interpreted in accordance with the ***intent of the framers.***

A constitution should bear in mind the object sought to be accomplished and the evils sought to be prevented or remedied. A doubtful provision shall be ***examined in light of the history of the times and the conditions and circumstances under which the Constitution was framed.***

- **Third,** ***UT MAGIS VALEAT QUAM PAREAT,*** i.e., the Constitution has to be ***interpreted as a whole***.

Sections bearing on a particular subject should be considered and interpreted together as to effectuate the whole purpose of the Constitution and one section is not to be allowed to defeat another, if by any reasonable construction, the two can be made to stand together.

Interpretation: a doubtful provision shall be examined in the light of the history of the times and the conditions and circumstances under which the Constitution was framed (*Civil Liberties Union v. Executive Secretary, 194 SCRA 317*). In case of doubt, the provisions should be considered self-executing; mandatory rather directory; and prospective rather than retroactive (*Nachura, Reviewer in Political Law, p.3*)

AMENDMENTS AND REVISIONS

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AMENDMENT

An ***addition or change within the lines of the original constitution*** as will effect an improvement, or better carry out the purpose for which it was framed;

A change that <u>*adds*</u>, <u>*reduces*</u> or <u>*deletes*</u> **without altering the basic principles involved**; *affects only the specific provision* being amended.

REVISION

A change that ***alters a basic principle in the constitution***, like altering the principle of separation of powers or the system of checks-and-balances;

Alters the *substantial entirety of the constitution*, as when the change affects ***substantial provisions*** of the constitution.

DIFFERENCE BETWEEN AMENDMENT AND REVISION

Revision generally affects several provisions of the constitution, while amendment generally affects only the specific provision being amended.

"Revision" implies a reexamination of the whole law and a redraft without obligation to maintain the form, scheme, or structure of the old. As applied to fundamental law, such as a constitution or charter, it suggests a convention to examine the whole subject and to prepare and submit a new instrument whether the desired changes from the old are few or many.

"Amendment" implies continuance of the general plan and purpose of the law, with corrections to better accomplish its purpose. Basically, **revision suggests fundamental change**, while **amendment** is a correction of detail.

Q: WHY IS IT SIGNFICANT TO DISTINGUISH AMENDMENT FROM REVISION?

This distinction is significant because the 1987 Constitution allows ***people's initiative only for the purpose of amending***, **not revising**, the Constitution. *(Sec. 2, Art. XIV, 1987 Constitution)*

FUNDAMENTAL POWERS OF THE STATE

The fundamental and inherent powers of the State are:

(a) Police Power;

(b) Power of Eminent Domain; and

(c) Power of Taxation

WHY ARE THESE POWERS INHERENT IN THE STATE?

- The birth of the State carries with it the authority to exercise those powers. They **co-exist with the State** and they are **enduring** and **indestructible** as the State itself.

- In fact, they **need not be expressly conferred by the Constitution** in favour of the State.

POLICE POWER

- The most essential, consistent, and illimitable which enables the State **to prohibit all hurtful things** to the **comfort**, **safety** and **welfare of the society**.

- To safeguard **health, morals, peace, education, order, safety and general welfare** of the people

Law of overruling necessity: power promoting public welfare by ***restraining and regulating*** the ***use of liberty and property.***

Basis: public necessity and right of State and of public to **self-protection** and **self-preservation**.

Who may exercise: generally, the ***legislature*** but also:

1. the President,
2. Administrative bodies, and
3. Law-making bodies of LGU's

Scope/Characteristics

Police power is the **most pervasive**, the **least limitable**, and the **most demanding** of the three powers.

Q: What then is the limit to police power?

A: Reasonability

Test of Reasonability

(1) Lawful subject
(2) Lawful means

The limit to police power is reasonability.

The Court looks at the test of reasonability to decide whether it encroaches on the right of an individual. So long as legitimate means can reasonably lead to create that end, it is reasonable. [*Morfe v. Mutuc (1968)*]

Q: What is LAWFUL SUBJECT?

(1) Lawful subject

Simply means that the subject of the measure is ***within the scope of the police power***, i.e., that the ***activity or property sought to be regulated affects the public welfare***.

- If it does, the **enjoyment of private rights may be *subordinated*** to the **interests of the greater number**, on the time-honored principle that the welfare of the people is the supreme law.

The justification is found in the Latin maxims: ***salus populi est suprema lex*** *and* ***sic utere tuo ut alienum non laedas***.

Q: What is LAWFUL MEANS?

(2) Lawful means

Even if the purpose be within the scope of the police power, the law will still be annulled if what is sought to be regulated is in violation of the second requirement.

In Constitutional Law, ***the end does not justify the means***. The lawful objective, in other words, ***must be pursued through a lawful method***; that is, both the end and the means must be legitimate. Lacking such concurrence, the police measure shall be struck down as an arbitrary intrusion into private rights.

LAWFUL MEANS – the means/method employed are **reasonably necessary** for the **accomplishment of the purpose**, and ***not unduly oppressive on individuals***;

- *EXAMPLE:*

To contain the ***spread of leprosy in the interest of public health***, the leper is confined in a leprosarium where he will not contaminate the other members of the community.

Q: Is it a valid exercise of police power? Under the circumstances, is confinement a lawful means?

- A: Yes. The restriction of his liberty is reasonably related to the purpose sought to be accomplished and cannot be considered unduly oppressive upon him.

- ***Q: But what if the legislature instead of mandating his confinement to stop the spread of disease were to provide for his summary execution, is it valid exercise of police power?***

- A: NO. The remedy, being **arbitrary**, would be illegal although the purpose of the law would be achieved.

➢*EXAMPLE:*

A law requires the attendance of a ***full-time pharmacist in drug stores.*** It is a requirement that before a pharmacy is granted the permit to operate, it should have a full-time licensed pharmacist.

- **Q: Is this valid as to purpose and method?**

- A: **YES**. A law requiring the attendance of a ***full-time pharmacist in drug stores*** is valid as to purpose and method since the presence of the pharmacist is intended to prevent the wrong dispensing of medicines to the detriment of the health or life of the customers.

- In pursuance of the ***constitutional policy to afford protection to labor***, the legislature may validly require reasonable working hours or minimum wages.

- But if the hours prescribed are inordinately short or the daily ages excessively high, this coddling of working class may be successfully challenged as being unduly oppressive to the employers.

- ***Q: What if instead of a full-time pharmacist, the law requires the presence of an engineer or a lawyer in drug stores.***

- ***Is the law constitutional for being a valid exercise of police power?***

- A: No. If the person whose presence was required was an engineer or a lawyer, the law would be unconstitutional as there would be ***no reasonable relation between the means and the end.*** Surely, a lawyer or an engineer has no expertise in dispensing medicines.

When exercised by a <u>delegate</u>:

a. express grant by law;

b. within territorial limits – for LGUs except when exercised to protect water supply; and

c. must not be contrary to law.

POWER OF EMINENT DOMAIN

Eminent domain refers to the inherent right of the state to **condemn private property** to **public use** ***upon payment of just compensation.***

Basis: necessity of the property for public use.

Who may exercise: generally, the **legislature** but also:

1. the President;
2. Law-making bodies of LGU's;
3. Public corporations, and;
4. Quasi-public corporations.

Two stages:

1. **determination of the authority** of the plaintiff to exercise the power and the propriety of its exercise;

2. **determination of just compensation**.

POWER OF TAXATION

TAXATION has been defined as the power of the sovereign to **impose burdens or charges** upon ***persons, property*** or ***property rights*** for the ***use and support of the government*** to be able to discharge its functions.

Scope: covers *persons, property, or occupation* to be taxed within taxing jurisdiction

Who may exercise: generally, the **legislature** but also:

1. Law-making bodies of LGU's *(Sec.5, Art. X); and*

2. The President, under *Sec. 28 (2), Art. VI* of the Constitution or as incident of emergency powers that Congress may grant to him under *Sec. 23(2), Art. VI.*

NATURE OF THE POWER OF TAXATION

1. It is ***inherent*** in sovereignty – the power of taxation exists independent of any legislation.

There is **no need to enact a law** to exercise that power because that power springs at the moment you have the existence of the state. This is inherent because this is ***based on necessity.***

Taxation is the life-blood of government.

2. It is ***legislative*** in character.

The power to tax is purely legislative in character. It is up to Congress which will determine the ***subjects or objects*** to be taxed, ***purpose***, the ***amount of the rate*** and the ***manner and means of its collection***.

Courts cannot question the motive of Congress or the law-making body, on the levy that is introduced by Congress or the law-making body.

SUMMARY OF FUNDAMENTAL POWERS OF THE STATE:

Distinctions

Requisites

FUNDAMENTAL POWERS OF THE STATE

Distinctions

POLICE POWER	EMINENT DOMAIN	TAXATION
1. Regulates both liberty and property	Affects only property rights	Affects only property rights
2. Exercised only by the Government	Maybe exercised by private entities	Exercised only by the Government
3. Public necessity and the right of the state and of the public to self-preservation and self-protection.	Necessity of the public for the use of private property	Public necessity
4. Property intended for a noxious purpose is taken and destroyed.	Property is wholesome and is devoted to public use or purpose	Property is wholesome and is devoted to public use or purpose
5. Compensation is the intangible, altruistic feeling that the individual has contributed to the public good	Compensation is full and fair equivalent of the property taken	Compensation is the protection and public improvements instituted by the government for the taxes paid
6. Contracts may be impaired.	Contracts may be impaired.	Contracts may not be impaired.

Requisites

POLICE POWER	EMINENT DOMAIN	TAXATION
1. Lawful subject 2. Lawful means *When exercised by a delegate:* 3. Express grant by law 4. Within the territorial limits 5. Must not be contrary to law	1. Necessity 2. Private property; 3. Taking; . 4. Public use; 5. Just compensation; 6. Due process of law.	1. Public purpose; 2. Uniformity; 3. Either the person or property taxed shall be within the jurisdiction of taxing authority; 4. That in assessment and collection of certain taxes, certain guarantees against injuries to individuals, especially by way of notice and opportunity for hearing shall be provided.